

SOLICITATION, OFFER, AND AWARD <i>(Construction, Alteration, or Repair)</i>		1. SOLICITATION NUMBER	2. TYPE OF SOLICITATION	3. DATE ISSUED	PAGE OF PAGES
		15B20526Q00000021	☐ SEALED BID (IFB) ☐ INVITATION FOR BID ☒ NEGOTIATED (RFP) ☐ REQUEST FOR QUOTE	05/11/2026	1 21
IMPORTANT -The "offer" section on the reverse must be fully completed by offeror.					
4. CONTRACT NUMBER		5. REQUISITION/PURCHASE REQUEST NUMBER		6. PROJECT NUMBER	
		15B20526PR000278		26Z2AN2	
7. ISSUED BY		CODE	8. ADDRESS OFFER TO		
Federal Bureau of Prisons		15B205			
FMC Devens					
42 Patton Rd					
Ayer, MA 01432					
9. FOR INFORMATION CALL:		a. NAME		b. TELEPHONE NUMBER (Include area code) (NO COLLECT CALLS)	
		Charles Coushaine CCoushaine@bop.gov			

SOLICITATION

NOTE: In sealed bid solicitations "offer" and "offeror" means "bid" and "bidder".

10. THE GOVERNMENT REQUIRES PERFORMANCE OF THE WORK DESCRIBED IN THESE DOCUMENTS (Title, identifying number, date)

The selected contractor shall provide all materials, labor and equipment to complete the project titled Refurbish Laundry Hot Water System at Federal Medical Center, Devens, in accordance with the Statement of Work.

Please provide your UEI:

11. The Contractor shall begin performance within <u>10</u> calendar days and complete it within <u>90</u> calendar days after receiving ☐ award, ☒ notice to proceed. This performance period is ☒ mandatory ☐ negotiable. (See _____.)	
12a. THE CONTRACTOR MUST FURNISH ANY REQUIRED PERFORMANCE AND PAYMENT BONDS? (If "YES," indicate within how many calendar days after award in Item 12b). ☒ YES ☐ NO	12b. CALENDAR DAYS 10
13. ADDITIONAL SOLICITATION REQUIREMENTS:	
a. Sealed offers in original and _____ copies to perform the work required are due at the place specified in item 8 by <u>10:00US/</u> (hour) local time <u>05/21/2026</u> (date). If this is a sealed bid solicitation, offers will be publicly opened at that time. Sealed envelopes containing offers shall be marked to show the offeror's name and address, the solicitation number, and the date and time offers are due.	
b. An offer guarantee ☐ is, ☒ is not required.	
c. All offers are subject to the (1) work requirements, and (2) other provisions and clauses incorporated in the solicitation in full text or by reference.	
d. Offers providing less than <u>90</u> calendar days for Government acceptance after the date offers are due will not be considered and will be rejected.	

OFFER (Must be fully completed by offeror)

14. NAME AND ADDRESS OF OFFEROR (Include ZIP Code)		15. TELEPHONE NUMBER (Include area code)
		16. REMITTANCE ADDRESS (Include only if different than Item 14.)
CODE	FACILITY CODE	

17. The offeror agrees to perform the work required at the prices specified below in strict accordance with the terms of this solicitation, if this offer is accepted by the Government in writing within _____ calendar days after the date offers are due. (Insert any number equal to or greater than the minimum requirement stated in Item 13d. Failure to insert any number means the offeror accepts the minimum in Item 13d.)

AMOUNTS

TOTAL FIRM-FIXED PRICE OFFER AMOUNT: \$

18. The offeror agrees to furnish any required performance and payment bonds.

19. ACKNOWLEDGMENT OF AMENDMENTS

(The offeror acknowledges receipt of amendments to the solicitation -- give number and date of each)

AMENDMENT NUMBER										
DATE.										

20a. NAME AND TITLE OF PERSON AUTHORIZED TO SIGN OFFER
(Type or print)

20b. SIGNATURE

20c. OFFER DATE

AWARD (To be completed by Government)

21. ITEMS ACCEPTED:

22. AMOUNT	23. ACCOUNTING AND APPROPRIATION DATA	
24. SUBMIT INVOICES TO ADDRESS SHOWN IN (4 copies unless otherwise specified)		25. OTHER THAN FULL AND OPEN COMPETITION PURSUANT TO THE UNITED STATES CODE AT ☐ 10 U.S.C. 3204(a) () ☐ 41 U.S.C. 3304(a) ()
26. ADMINISTERED BY	15B205	27. PAYMENT WILL BE MADE BY
Federal Bureau of Prisons FMC Devens 42 Patton Rd Ayer, MA 01432		Federal Bureau of Prisons FMC Devens PO Box 880 Ayer, MA 01432 Dev-BusinessOffice-S@bop.gov

CONTRACTING OFFICER WILL COMPLETE ITEM 28 OR 29 AS APPLICABLE

☐ 28. NEGOTIATED AGREEMENT (Contractor is required to sign this document and return _____ copies to issuing office.) Contractor agrees to furnish and deliver all items or perform all work requirements identified on this form and any continuation sheets for the consideration stated in this contract. The rights and obligations of the parties to this contract shall be governed by (a) this contract award, (b) the solicitation, and (c) the clauses, representations, certifications, and specifications incorporated by reference in or attached to this contract.		☒ 29. AWARD (Contractor is not required to sign this document.) Your offer on this solicitation is hereby accepted as to the items listed. This award consummates the contract, which consists of (a) the Government solicitation and your offer, and (b) this contract award. No further contractual document is necessary.	
30a. NAME AND TITLE OF CONTRACTOR OR PERSON AUTHORIZED TO SIGN (Type or print)		31a. NAME OF CONTRACTING OFFICER (Type or print)	
		Charles Coushaine	
30b. SIGNATURE	30c. DATE	31b. UNITED STATES OF AMERICA	31c. DATE
		BY	

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Section 2 - Commodity or Services Schedule

Header

Firm Fixed Price

SCHEDULE OF SUPPLIES/SERVICES					
CONTINUATION SHEET					
ITEM NO.	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0001	The selected contractor shall provide all materials, labor, and equipment to Refurbish the Hot Water Heater at the Federal Medical Center (FMC), Devens, located in Ayer Massachusetts, in accordance with the attached Statement of Work. PSC: J045	1	EA	\$ _____	\$ _____

Section 3 - Special Contract Requirements

Clauses By Reference

52.252-2 CLAUSES INCORPORATED BY REFERENCE (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es): www.acquisition.gov

Clause	Title	Fill-ins (if applicable)
2852.223-70	Unsafe Conditions Due to the Presence of Hazardous Material (NOV 2020)	

Clauses By Full Text

FAO-0001 Bonds

(a) Bid Guarantee. Each bidder shall submit with his bid a Bid Bond (Standard Form 24) with good and sufficient surety or sureties acceptable to the Government, or other security as provided in provision 52.228-1, in the form of twenty percent (20) of the bid price or not to exceed \$3,000,000. The bid bond penalty may be expressed in terms of a percentage of the bid price or may be expressed in dollars and cents. A bid bond is not required for bids of \$150,000 or less. (FAR 28.102-1)

(b) Performance and Payment Bonds. Within 10 days after award the contractor shall execute and submit to the Contracting Officer two bonds, each with good and sufficient surety or sureties acceptable to the Government, as follows; a Performance Bond (Standard Form 25) and a Payment Bond (Standard Form 25A). The penal sums of such bonds will be as follows: (Not required for contracts of \$150,000 or less)

(1) Performance Bond: The penal sum of performance bonds at the time of contract award shall be 100 percent of the original contract price.

(2) Payment Bond: The penal amount of payment bonds at the time of contract award shall be 100 percent of the original contract price.

(c) For construction contracts greater than \$35,000 but not greater than \$150,000, the Contracting Officer shall select two or more of the following payment protections, giving particular consideration to inclusion of an irrevocable letter of credit as one of the selected alternatives (FAR 28.102-1(b)(1)):

- (1) A Payment Bond;
- (2) An irrevocable letter of credit (ILC);
- (3) A tripartite escrow agreement;
- (4) A Certificate of Deposit; or
- (5) A deposit of the types of security listed in 28.204-1 and 28.204-2.

(d) Individual Sureties.

(1) Bidders may elect to furnish individual surety bonds. If individual surety bonds are furnished for bid guarantees, payment or performance bonds, the individual sureties must submit their bonds proof of ownership and value of the assets which they claim in their net worth at time of bid opening. The Government's preferred method of proof is to have a statement of net worth prepared by a Certified Public Accountant (CPA) in accordance with Generally Accepted Accounting Principles (GAAP). Statements from a CPA that contain disclaimers are not acceptable. The statement of net worth on the Standard Form 28, Affidavit of Individual Surety, is insufficient and will not be accepted without additional proof of value and ownership.

(2) Bidders are cautioned that individual sureties must provide complete and detailed information in Block 9 of Standard Form 28 concerning other contracts on which they have provided bonds. This information shall include contract number, contract location, amount, and type of bond and telephone number of the involved contracting office. Failure to provide the proof and information required may result in rejection of the bid or termination of the contract for failure to provide adequate bonds.

FAO-0002 Magnitude

The magnitude of this project is between \$\$100,000.00 and \$\$250,000.00.

FAO-0003 Required Insurance

See FAR 52.228-5, Insurance - Work on a Government Installation.

The Contractor shall, at its own expense, provide and maintain during the entire performance period of this contract, at least the kinds and minimum amounts of insurance required in the Schedule or elsewhere in the contract.

<u>TYPE</u>	<u>AMOUNT</u>
-------------	---------------

(1) WORKERS COMPENSATION & EMPLOYER'S LIABILITY	\$100,000
---	-----------

The required Workmen's Compensation Insurance shall extend to cover employee's liability for accidental bodily injury or death and for occupational disease with a minimum liability of \$100,000.

(2) COMPREHENSIVE GENERAL LIABILITY with a minimum limit of:

PER ACCIDENT OR

OCCURRENCE FOR BODILY INJURY	\$500,000
------------------------------	-----------

This insurance shall include contractor's protective and contractual liability.

(3) COMPREHENSIVE AUTOMOBILE LIABILITY with the following minimum limits:

PER PERSON	\$200,000
PER OCCURRENCE FOR BODILY INJURY	\$500,000
PER OCCURRENCE FOR PROPERTY DAMAGE	\$ 20,000

FAO-0004 Pre-Construction Conference

(a) Prior to the start of construction, Contracting Officers shall call a conference with the contractor, subcontractor(s), Warden, Controller/Business Administrator, Safety Manager, Facilities Administrator, Project Representative, A&E firm, Captain and other interested personnel to discuss the statutory labor standards, prevailing wage requirements, submission of the contractor's payrolls, subcontractor's responsibilities, institution work schedules, local policies, contraband, parking, storage of vehicles and equipment, etc.

Minutes of the conference shall be recorded, listing the names and titles of all attendees, and the subject matter of all items covered. The minutes shall be signed by the contractor and the Contracting Officer, and a signed copy placed in the contract file.

(b) The Contractor shall familiarize himself/herself with all procedures involved in normal institution routines. Any requirements which may constitute a problem or result in conflict, will be brought to the attention of the Contracting Officer or his representative for determination.

FAO-0005 Submittals

Within 10 calendar days after commencement of work or as otherwise established by the Contracting Officer, all materials and articles requiring approval, as contemplated by the Materials and Workmanship clause, shall be submitted by the contractor.

The submittal process is in place to allow the Government the opportunity to determine whether materials or procedures used by the contractor are in accordance with contract requirements. It is ultimately the Contractor's responsibility via the quality control process to ensure submittal items installed under the contract and work performed on site are in accordance with industry standards and general practices.

(a) The types of submittal requirements specified in this contract may include, but is not limited to; shop drawings, product data, samples, certificates of conformance or compliance, certified test or inspection reports, equipment, materials, and miscellaneous work related submittals for construction. Individual submittal requirements are generally specified in applicable sections for each unit of work in the specifications and/or as a whole in one section in the statement of work.

(b) The Bureau of Prisons (BOP) Contracting Officer's Representative (COR) shall act for the Contracting Officer in the review and acceptance of all submittals. The Contractor shall submit submittals as required by the contract/specifications to the COR for transmittal to the Contracting Officer. Fabrication of any work or purchase or use of any submittals (such as materials for which samples are required or equipment, etc.) shall not take place until written acceptance is given by the COR, except at the Contractor's own risk.

(c) The Contractor shall submit all shop drawings and submittals sufficiently in advance (unless otherwise specified in the specifications) of the construction requirements to allow ample time for checking, re-submitting, and re-checking.

(d) Failure of any materials to pass their specified tests shall be sufficient cause for refusal to consider, under this contract, any further samples of the same brand or make of that material. The Government reserves the right to disapprove any material or equipment which has previously proven unsatisfactory in service.

(e) The Contracting Officer's or designee's approval or acceptance of submittals is not to be construed as a complete check. Approval or acceptance will not relieve the Contractor of the responsibility for any error which may exist, as the Contractor is responsible for the satisfactory construction of all work. The Contractor is responsible for delivering a final product/system that is operational as intended by the contract requirements, regardless of any Government approvals or acceptance of submittals. The Government assumes no liability during the submittal approval/acceptance process. It is the sole responsibility of the Contractor to deliver a properly functioning product or system.

FAO-0006 Contractor Use of Premises

Work Hours

The project schedule is based on a normal forty (40) hour work week, eight (8) hours per day, Monday through Friday, excluding Federal holidays. The Contracting Officer's Representative (COR) shall establish the work hour time frames for the duration of the project, subject to the approval of the Contracting Officer. Work hours and work days may be altered only with a 48 hour advance approval of the Contracting Officer.

NOTE: Access to the site will be available during normal working hours except during emergencies. It shall be the responsibility of the Contractor to familiarize himself, his employees, and his subcontractors of the working hours and conditions in the correctional facility, as working hours may not constitute a full eight hour day. The Government assumes no responsibility to the Contractor, nor to any of his subcontractors, for shorter hours due to institutional emergencies or entry and/or exit of workers necessitated by normal institution routines. The procedures and institutional entrance/exit routines applicable to this project will be explained at both the pre-bid conference/site visit and the pre-construction meeting.

Contraband

The Contractor shall inform his employees that intoxicating beverages, drugs, weapons, etc., will not be allowed on the site. Introduction of contraband shall be subject to the penalties prescribed by Title 18 USC-1791.

Explosives

The use of explosives is absolutely forbidden without written authorization from the Contracting Officer.

Parking and Temporary Office

Parking will be available at the site to the extent it does not interfere with construction activities. Otherwise, parking shall be provided for by the Contractor, at his expense, off the site for workmen employed on the project. Any temporary field office used by the Contractor shall be located in an area approved by the COR.

Safety and Accident Prevention

In performing work under this contract the contractor shall:

- (a) Conform to the specific safety requirements established by this contract;
- (b) Comply with the safety rules of the Government institution that concern related activities not directly addressed in this contract;
- (c) Take all reasonable steps and precautions to prevent accidents and preserve the life and health of contractor and Government personnel performing or in any way coming in contact with the performance of this contract; and
- (d) Take such additional immediate precautions as the Contracting Officer and/or COR may reasonably require for safety and accident prevention purposes.

FAO-0007 Payment Services

(a) Original application for payment shall be prepared on AIA (American Institute of Architects) Form G-702 "Application and Certificate for Payment" and submitted to the Contracting Officer. The contractor may use another form; however, it shall contain similar information as the AIA Form G-702. The Contracting Officer's Representative (COR) will approve the amount of payment by signing. The approved application for payment shall be forwarded as follows: Original to Accounting; Copy for Contract Award File.

(b) All small business contractors are required to self-certify on all invoices their small business status.

(c) The following information is required with each application for payment:

- Name and address of contractor
- Contract number
- Contractor invoice/application for payment number
- Description, price, and quantity of construction completed/rendered
- Payment terms (reference the contract payment clause)
- Other substantiating documentation or information required by the contract
- Name, title, and phone number of official to be notified in the event of a defective invoice
- Contractor TIN (Tax ID Number)

FAO-0008 Request for Final Inspection

The Contractor shall give the Contracting Officer's Representative (COR) a minimum of ten (10) working days advanced written notice of the date on which the work will be fully completed and ready for the Government's final inspection.

FAO-0009 Contract Security (Program Statement 3000.03 Human Resource Management Manual)

In addition to the information contained in clause "DOJ-03 Personnel Security Requirements For Contractor Employees (Nov 2021); (Alt. I) -- Classified Information -- Cleared

Contractors", the following additional security is required to be completed and submitted for all contract employees who will be working under the terms of the contract:

Criminal History Check – BP-A0660

CJIS Name Check Request Form

BOP Contractor Pre-employment Questionnaire

BOP Authority for Release of Information

FAO-0010 Assignment of Contract Administration Office and Functions

Pursuant to FAR 42.201 and 42.202, the assigned Contract Administration Office is listed in Block 26 of the Standard Form 1442 Back. This assignment carries with it the authority to perform all of the contract administration functions listed in FAR 42.302(a) and 42.302(b) to the extent that those functions apply to the contract.

The Contract Administration Office is required, however, to obtain written authorization from the Procuring Contracting Officer (PCO) to perform any function listed under 42.302(b). *Specifically*, the Administrative Contracting Officer (ACO) is required to obtain written authorization to perform the below referenced functions **FOR CONSTRUCTION CONTRACT AWARDS**:

- (1) Negotiate or negotiate and execute supplemental agreements incorporating contractor proposals resulting from change orders issued under the Changes clause. Before completing negotiations, coordinate any delivery schedule change with the contracting office.
- (2) Negotiate prices and execute priced exhibits for unpriced orders issued by the contracting officer under basic ordering agreements.
- (3) Negotiate or negotiate and execute supplemental agreements changing contract delivery schedules.
- (4) *Complete* Contractor Performance Assessment Report System (CPARS) evaluations of contractor performance in accordance with FAR Subpart 42.15.

Should any other function under FAR Subpart 42.15 not listed above be required, the ACO is required to contact the PCO for authority.

FAO-0012 Progress Meetings

The Administrative Contracting Officer (ACO) shall conduct progress meetings at the project site on a monthly basis, or at intervals as determined by the ACO.

(a) At a minimum, the attendees shall include but is not limited to:

- (1) FBOP: Administrative Contracting Officer, Contracting Officer's Representative (COR), Facility Administrator/Manager, Architect/Engineer (if applicable), Other Personnel (Executive Staff, Captain, Safety Manager, etc.).
- (2) Contractor: Project Manager, Superintendent, and technical support disciplines as appropriate (Subcontractors, Manufacturers, Suppliers, etc.).

(b) The meeting should include, but is not limited to issues such as:

Administrative Contracting Officer:

- (1) Old business from previous progress meeting(s);
- (2) Status of modifications, certified payrolls, submittals, requests for information (RFI);
- (3) Review of payments made to date and review/approve current payment request;
- (4) Status of modification proposal requests;
- (5) Discuss new business.

COR:

- (1) Status of escort coverage;
- (2) Review gate or sallyport entrance/exit issues;
- (3) Discuss other delays contractor may be experiencing;
- (4) Discuss performance/quality issues.

Contractor:

- (1) Review/discuss updated progress schedule;
- (2) Provide 30 day outlook;
- (3) Discuss other issues affecting performance.

FAO-0014 Contract Closeout Procedures (for construction contracts \$150,000 or less)

Contract Closeout must be completed upon receipt of property and final payment.

Prior to payment of final invoice:

The Contractor shall submit the following documentation:

- (1) Guarantees and warranties;

- (2) All operation/maintenance manuals;
- (3) Consent of Surety to Final Payment (AIA Document G707), if the contractor furnished a bond;
- (4) Release of Claims (GSA Form 1142);
- (5) Evidence of no pending labor disputes;
- (6) As-built drawings/shop drawings, (if applicable);
- (7) Contractor's final invoice.

AIA forms can be obtained from The American Institute of Architects at www.aia bookstore.com.

GSA forms can be obtained from the General Services Administration at www.gsa.gov (click on the "Forms Library" link).

Section 4 - Contract Clauses

Clauses By Reference

52.252-2 CLAUSES INCORPORATED BY REFERENCE (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es): www.acquisition.gov

Clause	Title	Fill-ins (if applicable)
52.246-12	Inspection of Construction (Aug 1996)	
52.203-7	Anti-Kickback Procedures (Jun 2020)	
52.203-12	Limitation On Payments to Influence Certain Federal Transactions (Jun 2020)	
52.203-19	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017)	
52.204-9	Personal Identity Verification of Contractor Personnel (Jan 2011)	
52.204-10 (DEV)	Reporting Executive Compensation and First-Tier Subcontract Awards (Jun 2020)(DEVIATION NOV 2025)	
52.204-13 (DEV)	System for Award Management-Maintenance (Oct 2018) (DEVIATION NOV 2025)	
52.209-6 (DEV)	Protecting the Government's Interest When Subcontracting with Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded (Jan 2025) (DEVIATION NOV 2025)	
52.209-10 (DEV)	Prohibition on Contracting With Inverted Domestic Corporations (Nov 2015) (DEVIATION NOV 2025)	
52.212-4 (DEV)	Terms and Conditions-Commercial Products and Commercial Services (Nov 2023) (DEVIATION NOV 2025)	

Clause	Title	Fill-ins (if applicable)
52.219-6 (DEV)	Notice of Total Small Business Set-Aside (Nov 2020) (DEVIATION DEC 2025)	
52.219-14 (DEV)	Limitations on Subcontracting (Oct 2022) (DEVIATION DEC 2025)	
52.219-28 (DEV)	Postaward Small Business Program Rerepresentation (Jan 2025) (DEVIATION DEC 2025)	
52.222-1 (DEV)	Notice to the Government of Labor Disputes (Feb 1997) (DEVIATION DEC 2025)	
52.222-3 (DEV)	Convict Labor (June 2003) (DEVIATION DEC 2025)	
52.222-4 (DEV)	Contract Work Hours and Safety Standards--Overtime Compensation (May 2018) (DEVIATION DEC 2025)	
52.222-6 (DEV)	Construction Wage Rate Requirements (Aug 2018) (DEVIATION AUG 2025)	
52.222-7 (DEV)	Withholding of Funds (May 2014) (DEVIATION DEC 2025)	
52.222-8 (DEV)	Payrolls and Basic Records (Jul 2021) (DEVIATION DEC 2025)	
52.222-9 (DEV)	Apprentices and Trainees (July 2005) (DEVIATION DEC 2025)	
52.222-10 (DEV)	Compliance with Copeland Act Requirements (Feb 1988) (DEVIATION DEC 2025)	
52.222-11 (DEV)	Subcontracts (Labor Standards) (May 2014) (DEVIATION DEC 2025)	
52.222-12	Contract Termination - Debarment (May 2014)	
52.222-13	Compliance with Construction Wage Rate Requirements and Related Regulations (May 2014)	
52.222-14 (DEV)	Disputes Concerning Labor Standards (Feb 1988) (DEVIATION DEC 2025)	
52.222-15	Certification of Eligibility (May 2014)	
52.222-37 (DEV)	Employment Reports on Veterans (Jun 2020) (DEVIATION DEC 2025)	

Clause	Title	Fill-ins (if applicable)
52.222-50 (DEV)	Combating Trafficking in Persons (Oct 2025) (DEVIATION DEC 2025)	
52.222-55 (DEV)	Minimum Wages for Contractor Workers Under Executive Order 14026 (Jan 2022) (DEVIATION DEC 2025)	
52.222-62 (DEV)	Paid Sick Leave Under Executive Order 13706 (Jan 2022) (DEVIATION DEC 2025)	
52.223-3 (DEV)	Hazardous Material Identification and Safety Data (Feb 2021) (DEVIATION DEC 2025)	
52.225-9 (DEV)	Buy American-Construction Materials (Oct 2022) (DEVIATION DEC 2025)	
52.226-8	Encouraging Contractor Policies To Ban Text Messaging While Driving (May 2024)	
52.227-1	Authorization and Consent (Jun 2020)	
52.228-2	Additional Bond Security (Oct 1997)	
52.228-11	Individual Surety-Pledge of Assets (Feb 2021)	
52.228-12	Prospective Subcontractor Requests for Bonds (Dec 2022)	
52.228-14	Irrevocable Letter of Credit (Nov 2014)	
52.228-15	Performance and Payment Bonds-Construction (Jun 2020)	
52.232-23	Assignment of Claims (May 2014)	
52.232-27	Prompt Payment for Construction Contracts (Jan 2017)	
52.232-33	Payment by Electronic Funds Transfer-System for Award Management (Oct 2018)	
52.233-1 (DEV)	Disputes (May 2014) (DEVIATION NOV 2025)	
52.233-3 (DEV)	Protest after Award (Aug 1996) (DEVIATION NOV 2025)	
52.233-4 (DEV)	Applicable Law for Breach of Contract Claim (Oct 2004) (DEVIATION NOV 2025)	
52.236-2 (DEV)	Differing Site Conditions (Apr 1984) (DEVIATION AUG 2025)	

Clause	Title	Fill-ins (if applicable)
52.236-3 (DEV)	Site Investigation and Conditions Affecting the Work (Apr 1984) (DEVIATION AUG 2025)	
52.236-5 (DEV)	Material and Workmanship (Apr 1984) (DEVIATION AUG 2025)	
52.236-6 (DEV)	Superintendence by the Contractor (Apr 1984) (DEVIATION AUG 2025)	
52.236-7 (DEV)	Permits and Responsibilities (Nov 1991) (DEVIATION AUG 2025)	
52.236-8 (DEV)	Other Contracts (Apr 1984) (DEVIATION AUG 2025)	
52.236-9 (DEV)	Protection of Existing Vegetation, Structures, Equipment, Utilities, and Improvements (Apr 1984) (DEVIATION AUG 2025)	
52.236-10 (DEV)	Operations and Storage Areas (Apr 1984) (DEVIATION AUG 2025)	
52.236-11 (DEV)	Use and Possession Prior to Completion (Apr 1984) (DEVIATION AUG 2025)	
52.236-12 (DEV)	Cleaning Up (Apr 1984) (DEVIATION AUG 2025)	
52.236-13 (DEV)	Accident Prevention (Nov 1991) (DEVIATION AUG 2025)	
52.236-14 (DEV)	Availability and Use of Utility Services (Apr 1984) (DEVIATION AUG 2025)	
52.236-17 (DEV)	Layout of Work (Apr 1984) (DEVIATION AUG 2025)	
52.246-21	Warranty of Construction (Mar 1994)	
2852.212-4	Contract Terms and Conditions, Commercial Items (FAR Deviation) (NOV 2020)	

Clauses By Full Text

52.211-12 Liquidated Damages-Construction (Sept 2000)

(a) If the Contractor fails to complete the work within the time specified in the contract, the Contractor shall pay liquidated damages to the Government in the amount of \$422.67 [*Contracting Officer insert amount*] for each calendar day of delay until the work is completed or accepted.

(b) If the Government terminates the Contractor's right to proceed, liquidated damages will continue to accrue until the work is completed. These liquidated damages are in addition to excess costs of repurchase under the Termination clause.

(End of clause)

2852.201-70 Contracting Officer's Representative (COR) (NOV 2020)

(a) Mr./Ms. [Name] of [Organization] , [Address] , [Area Code, Telephone Number] , is hereby designated to act as Contracting Officer's Representative (COR) under [Contract Number] , for the period of [Period] (specify the performance period of the contract that the designation covers).

(b) Performance of work under this contract is subject to the technical direction of the COR identified above, or another representative designated in writing by the Contracting Officer. The term "technical direction" includes, without limitation, the following:

(i) Receiving all deliverables;

(ii) Inspecting and accepting the supplies or services provided in accordance with the terms and conditions of this contract;

(iii) Clarifying, directing, or redirecting the contract effort, including shifting work between work areas and locations, filling in details, or otherwise serving to accomplish the contractual statement of work to ensure the work is accomplished satisfactorily;

(iv) Evaluating performance of the Contractor; and

(v) Certifying all invoices/vouchers for acceptance of the supplies or services furnished for payment.

(c) The COR does not have the authority to issue direction that:

(i) Constitutes a change of assignment or work outside the contract specification/work statement/scope of work.

(ii) Constitutes a change as defined in the clause entitled "Changes" or other similar contract term.

(iii) Causes, in any manner, an increase or decrease in the contract price or the time required for contract performance;

(iv) Causes, in any manner, any change in a term, condition, or specification or the work statement/scope of work of the contract;

(v) Causes, in any manner, any change or commitment that affects price, quality, quantity, delivery, or other term or condition of the contract or that, in any way, directs the contractor or its subcontractors to operate in conflict with the contract terms and conditions;

(vi) Interferes with the contractor's right to perform under the terms and conditions of the contract;

(vii) Directs, supervises, or otherwise controls the actions of the Contractor's employees or a Subcontractor's employees.

(d) The Contractor shall proceed promptly with performance resulting from the technical direction of the COR. If, in the opinion of the Contractor, any direction by the COR or the designated representative falls outside the authority of (b) above and/or within the limitations of (c) above, the Contractor shall immediately notify the Contracting Officer.

(e) Failure of the Contractor and Contracting Officer to agree that technical direction is within the scope of the contract is a dispute that shall be subject to the "Disputes" clause and/or other similar contract term.

(f) COR authority is not re-delegable.

(End of Clause)

Section 5 - Attachments

Identifier	Title	Number of Pages
1	0 - 26Z2AN2 - RCA coversheet water heaters.pdf	
2	3- Procurement Integrity Form - Mark Hamilton.pdf	
6	26Z2AN2 Determination Memo.pdf	
7	2026 clp-report.pdf	
9	BnF 2 - 26Z2AN2 - Period of Performance.pdf	
10	BnF 3 - 26Z2AN2 - No Drawings Required.pdf	
11	BnF 5 - 26Z2AN2 - Liquidated Damages.pdf	
12	BnF 6 - 26Z2AN2 - SBU.pdf	
13	Hamilton COR2 Certificate.pdf	

Section 6 - Solicitation Provisions

Provisions By Reference

52.252-1 SOLICITATION PROVISIONS INCORPORATED BY REFERENCE (FEB 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es): www.acquisition.gov

Provision	Title	Fill-ins (if applicable)
52.204-7 (DEV)	System for Award Management-Registration (Nov 2024) (DEVIATION NOV 2025)	
52.212-1 (DEV)	Instructions to Offerors-Commercial Products and Commercial Services (Sep 2023) (DEVIATION NOV 2025)	
52.222-5 (DEV)	Construction Wage Rate Requirements - Secondary Site of the Work (May 2014) (DEVIATION DEC 2025)	
52.236-27 Alt I	Site Visit (Construction) (Feb 1995) - Alternate I (Feb 1995)	
2852.233-70	Protests Filed Directly with the Department of Justice (NOV 2020)	
52.228-1	Bid Guarantee (Sept 1996)	(c)Percent: "20%" (c)BidPrice: "3 million"
52.212-2 (DEV)	Evaluation-Commercial Products and Commercial Services (Nov 2021) (DEVIATION NOV 2025)	

Section 7 - Representations and Certifications

Provisions By Reference

52.252-1 SOLICITATION PROVISIONS INCORPORATED BY REFERENCE (FEB 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es): www.acquisition.gov

Provision	Title	Fill-ins (if applicable)
52.225-2	Buy American Certificate (Oct 2022)	

Refurbish Laundry Hot Water System

STATEMENT OF WORK

1. SUBJECT

The purpose of this Statement of Work is to provide the Federal Medical Center Devens (FMC, Devens), Facilities department with a contract to refurbish the current steam-fired, on demand hot water system and storage tank located in the Core Services building at FMC Devens, 42 Patton Road, Ayer, MA 01432

2. PLACE OF PERFORMANCE

The place of performance will be Devens Federal Medical Center -42 Patton Road, Ayer, MA 01432.

3. SCOPE OF SERVICES

The existing hot water system consists of two Armstrong brand 535SW on-demand steam fired water heaters and a single, 2000 gallon PVI brand epoxy-lined storage tank. This system also employs re-circulation pumps and piping to maintain hot water at the laundry department for clothing disinfection.

Over time, the efficiency of the water heating system has begun to diminish, and replacement / refurbishment is the best option for optimal reliability moving forward.

Storage tank

The existing storage tank will be re-used and re-insulated as needed to help contain heat as part of this project. Internal investigation will be carried out by the chosen contractor to ensure the integrity of the liner of the tank.

Heat Exchangers/water heaters

The existing heat exchangers will be removed and replaced with equivalent (or larger if required) Armstrong heat exchangers to allow for a more efficient removal/re-installation process. The new heat exchangers will be steam-fired, on-demand water heaters capable of maintaining 160 degree water in the 2000 gallon tank.

Re-circulation pumps

Re-circulation pumps will be replaced with new units to ensure system longevity. Piping is expected to remain but will be determined at pre-award site visit.

Associated piping

All hot water lines will be insulated as part of this project. Any insulation/work removed will be replaced. All Steam lines located around the exchangers will be insulated as well.

All removed materials will be left on site, to include heat exchangers, piping, valves, pumps, etc. The Government will dispose of all refuse.

All work will follow all applicable codes, including NFPA, IBC, OSHA, etc.

As this work is located within the secure perimeter, logistical issues may impede normal workflow. Bathroom facilities will be provided. A single 110V electrical circuit/outlet will be provided, the contractor will need to provide extension cords.

4. SCHEDULE

Refurbish Laundry Hot Water System

Services will be anticipated to be completed within 90 days of receiving the Notice to Proceed from the Contracting Officer. Should a longer period be needed, the Contractor should contact the COR and the Contracting Officer as soon as physically possible. This is a contractual agreement, not a personnel appointment. Therefore, the Contractor is not eligible to receive government benefits such as paid annual/sick leave, medical insurance, tax benefits, etc. The service does not constitute an employer/employee relationship: and the contractor will not be subject to Government supervision, except for security related matters. However, contractor performance shall be closely monitored.

Shut-downs and logistics regarding water shut downs will be discussed in depth during the post-award meeting/site visit. Any shut-downs will need to be planned and approved by FMC Devens prior to shutting off water.

5. METHOD OF PERFORMANCE

The services provided, being professional in nature, will be provided in the manner as considered appropriate in the local community. In accordance with Justice Acquisition Regulation 2852.270, the Contractor's performance will be monitored by the Contracting Officer's Representative. (COR)

6. MINIMUM QUALIFICATIONS

The contractor must be properly licensed to perform these services in the Commonwealth of Massachusetts, if required. The contractor agrees to follow all federal, state, and local laws, including OSHA codes. The Contractor will be required to provide professional certifications prior to award. Local Building Permits are not required.

7. SUPPLIES

All supplies will be provided by the contractor. All supplies will be brand-new items, used materials are not permitted.

8. INMATE MANAGEMENT

Provisions of services under this contract will require infrequent and unsupervised contact with inmates. Contractor will not be responsible for management of inmates.

9. INSTITUTION SECURITY

The contractor agrees to adhere to all regulations prescribed by the institution for the safety, custody, and conduct of inmates. Devens Federal Medical Center will provide escort for the Contractor during the duration of the contract. Due to the sensitive nature of the correctional environment, the contractor is expected to be prompt in reporting to the workplace in order to support the inmate accountability policy.

The entirety of this contract will take place inside the secure perimeter of the Prison. This means that normal workflow will need to be modified. More information will be provided at a pre-award site meeting to ensure all bidders understand the limitations and specific security regulations

Refurbish Laundry Hot Water System

required to work on this contract.

10. CONTRACTUAL INFORMATION

FMC Devens will be responsible for the following vouchering and law enforcement checks, as well as ensuring that fingerprinting and urinalysis testing is completed in accordance with the Human Resource Manual to include the following:

1. National Crime Information Center (NCIC) check
2. DOJ-99 (Name Check)
3. FD-258 (Fingerprint Check)
4. Law Enforcement Agency Checks
5. Vouchering of employees over past 5 years
6. Resume/Personal Qualifications
7. OPM-329-A (Authority for Release of Information)
8. NACI-if Applicable

Due to the short nature of the contract, many of the above will not be required, it will be the Contracting Officer's determination. There are three documents that must be completed by each contract worker that will provide this service to the Government. The required documents are as follows:

1. Contractor Pre-Employment Form
2. Standard Form 85P - Authorization for Release of Information
3. BP-S660.012 NCIC Check - Authorization for Release of Information.

These forms are in conjunction with the above-mentioned checks. Please ensure that they are completed and forwarded to the Contracting Officer immediately upon notification of award, should you receive this contract.

All employees entering or working must also provide evidence that they have resided in the UNITED STATES 3 out of the last 5 years. Information will be supplied to the Contracting Officer with the above information.

11. Non-Personal Contract

- (1) The service is a contractual arrangement and not a personnel appointment;
- (2) Payment is based on an end product or the accomplishment of a specific result;
- (3) The service does not constitute an employer/employee relationship; and
- (4) The contractor will not be subject to Government supervision, except for security-related matters. However, contractor performance shall be monitored.